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Wyoming Board
of Medicine

BEFORE THE WYOMING BOARD OF MEDICINE

IN THE SUMMARY SUSPENSION MATTER OF:	)	
	)	Docket No. 23-12
ERIC C. WELLING, M.D., Respondent,	)	
Wyoming Physician License No. 10015A.	)	

ORDER OF SUMMARY SUSPENSION OF ERIC C. WELLING, M.D., WYOMING PHYSICIAN LICENSE No. 10015A, PENDING A CONTESTED CASE HEARING

THIS MATTER having come before the Wyoming Board of Medicine ("Board") consisting of Ms. Cissy Dillon, Michael Jording, M.D., Valerie Mockensturm, PA-C, Melinda Poyer, D.O., and A. Dozier Tabb, M.D., during a regular meeting of the Board on November 4, 2022, upon presentation of information by Kevin Bohnenblust, Board Executive Director, and Connie Schepp, CMBI, Board Investigator, regarding the Wyoming physician license of Eric C. Welling, M.D. ("Dr. Welling"), pursuant to the authority and jurisdiction granted to the Board by the Wyoming Medical Practice Act, WYO. STAT. ANN. §§ 33-26-101 to 703 ("the Act"), and the Wyoming Administrative Procedure Act, WYO. STAT. ANN. §§ 16-3-101 to 115; the Board having reviewed such information and otherwise being fully advised in the premises hereby finds, concludes, and orders as follows:

I. STATEMENT OF THE CASE

Board staff received information regarding Dr. Welling which indicates that Dr. Welling's possession of a Wyoming physician license poses a threat to public health, safety, or welfare and imperatively requires emergency action. Pursuant to Wyoming

Statutes §§ 33-26-404(c) and 16-3-113(c), such information was presented to the Board Officers, who determined it was appropriate for the Board to consider whether the public health, safety, or welfare imperatively require emergency action.

On November 4, 2022, during executive session of a regular meeting of the Board, the Board's Executive Director and Investigator presented information concerning Dr. Welling.

II. FINDINGS OF FACT

1. On January 23, 2015, the Board issued Wyoming physician license 10015A to Dr. Welling. The license has been renewed annually since that date.

2. On or about October 25, 2021, the Wyoming Board received a National Practitioner Data Bank ("NPDB") report, stating Davis Hospital and Medical Center in Layton, Utah, suspended the clinical privileges of Dr. Welling, effective September 23, 2021.

3. The NPDB report stated:

> "Dr. Welling demonstrated a high-than-average discrepancy rate related to his use of medications, including controlled substances in his anesthesia practice. He was placed on a Focused Review on March 9, 2021, and on Conditional Staff Category on May 25, 2021, due to continued concerns with his drug administration, medical stewardship and medical documentation. On September 21, 2021, at the end of his 6 month FPPE, he disclosed to the MEC that he may have underlying deficits which could be the cause of his substandard performance. He was summarily suspended on September 23, 2021, due to health and safety concerns and was requested to obtain a cognitive assessment. After his suspension went into effect, additional patient safety concerns were raised and an investigation into his performance was initiated on September 30, 2021. At this time Dr. Welling has not completed all the requirements of his suspension and it has currently been in place for a period longer than 30 days.

4. On or about October 27, 2021, Board staff opened complaint No. 1274, and

requested a response from Dr. Welling regarding the NPDB report.

5. On or about November 12, 2021, Dr. Welling emailed a response to the Board office stating:

> I am writing to verify that my privileges have been suspended at Davis Hospital pending an investigatory suspension related to anesthesia charting errors. The Davis Hospital Medical Executive Committee required an evaluation at Acumen Assessments in Lawrenceville [sic], KS for neurocognitive testing to diagnosis a medical condition that would explain anesthesia charting errors with relation to the medications removed from the Pyxis drug dispensing system. I suggested that perhaps that a mental illness (ADHD) may explain my the [sic] errors and apparent distraction. The first available appointment at Acumen Assessments was 3 ½ weeks after the suspension. It was also known that Acumen Assessments require 4-6 weeks for completion of their "written review" which is what the Davis Hospital MEC required for their investigatory suspension.
>
> I finished the assessment at Acumen Assessments on October 14. The preliminary report was a diagnosis of Cyclothymia with Anxious Distress. I am seeking consultation with Dr. Benjamin VanLeeuwen, M.D. (Psychiatrist, Layton, UT) who has changed my medication regimen.
>
> We are still awaiting the final report from Acumen Assessments at which the Davis Hospital MEC will make their recommendations and treatment plan.
>
> Thank you for your notification of this matter.

6. On or about November 23, 2021, the Wyoming Board received a subsequent NPDB report, stating Davis Hospital and Medical Center in Layton, Utah, extended the previous action regarding Eric C. Welling, M.D., on November 23, 2021.

7. The NPDB report stated:

> On November 15, 2021, Dr. Welling requested a medical leave of absence for an indefinite period of time. This was due to the recommendation and findings of Dr. Welling's neurologic cognitive assessment provided by Acumen Assessments in Lawrence, Kansas. His request was approved by the Medical Executive Committee on November 16, 2021, and finalized by the Board of Trustees on November 23, 2021.

8. On or about December 15, 2021, the Board office received the Acumen Assessment report regarding Dr. Welling. The report stated Dr. Welling would be able to

safely and skillfully practice only if he followed the recommendations included on the report. The report is attached hereto as Exhibit A.

9. On or about December 16, 2021, Dr. Welling was advised that the Board officers appointed Board members René Hinkle, M.D., and Diane Noton, M.D., as Interviewers ("Interviewers") to further investigate this matter.

10. On or about March 2, 2022, after many requests, the Board office received medical records from Dr. Welling's treating physician, Benjamin VanLeeuwen, M.D. The records received indicated that Dr. Welling was going against Acumen Assessments recommendations by changing his own medications, not participating in an intensive partial hospital or day treatment for professionals in crisis, and not taking a leave of absence as recommended until further assessment demonstrates an improvement in his thought organization on the medication.

11. On or about March 25, 2022, the Board's Prosecuting Attorney sent a letter to Dr. Welling asking him to specifically answer how he had strictly complied with each of the seven recommendations made in the Acumen Assessment evaluation.

12. On or about March 29, 2022, Dr. Welling sent an email response detailing each of the recommendations by Acumen Assessments and how he felt he had strictly complied with the recommendations.

13. On or about April 21, 2022, Dr. Welling met for an Informal Interview with the Interviewers and the Board's Prosecuting Attorney.

14. On or about July 6, 2022, the Interviewers and Prosecuting Attorney sent a memo to the Board officers requesting the officers Order a Mental Health Examination on Eric C. Welling, M.D. The memo is attached hereto as Exhibit B.

15. On or about July 22, 2022, the BOARD OFFICERS' ORDER FOR ALCOHOL, SUBSTANCE AND MENTAL HEALTH EXAMINATION OF ERIC WELLING, M.D., WYOMING PHYSICIAN LICENSE NO. 100015A ("Order"), was filed and served on Dr. Welling via email and First-Class mail.

Summary Suspension

16. Dr. Welling was ordered to confirm attendance at a pre-approved alcohol, substance and mental health examination to the Board no later than 5:00 p.m., Wednesday, August 12, 2022. The Board is concerned that Dr. Welling failed to comply with this portion of the Order.

17. Dr. Welling was ordered to initially present for the alcohol, substance and mental health examination no later than Monday, September 5, 2022, and shall be completed no later than Friday, September 9, 2022. The Board is further concerned Dr. Welling failed to comply with this portion of the Order.

18. The Board is further concerned that, if proven, the above actions by Dr. Welling would constitute one or more violations of the Wyoming Medical Practice Act, and more specifically:

a. WYO. STAT. ANN. § 33-26-402(a)(xxiii) (Failure to submit to an informal interview or a mental, physical or medical competency examination following a proper request by the board pursuant to W.S. 33-26-403);

b. WYO. STAT. ANN. § 33-26-402(a)(xxviii) (Upon proper request by the board, failure or refusal to produce documents or other information relevant to any investigation conducted by the board, whether the complaint is filed against the licensee or any other licensee).

19. The Board is led to find that for all the reasons stated above, most especially Dr. Welling's failure to comply with the Order of the Board Officers requiring a re-evaluation at Acumen Assessments of his ability to practice safely and skillfully, Dr. Welling's continued possession of a Wyoming physician license, and his ongoing ability to practice medicine in Wyoming using that license, poses an imminent and immediate threat to the public health, safety, and welfare of the people of Wyoming that imperatively requires an immediate summary suspension of his Wyoming physician license.

20. The Board further finds that the summary suspension ordered herein should continue until the filing of a formal Petition setting forth in detail the alleged violations of the Wyoming Medical Practice Act by Dr. Welling, and the completion of a contested case hearing on, or other resolution of, said action.

III. CONCLUSIONS OF LAW

21. The Wyoming Board of Medicine is the sole and exclusive regulatory licensing agency in the State of Wyoming regarding the practice of medicine and surgery, as provided by the Wyoming Medical Practice Act, WYO. STAT. ANN. §§ 33-26-101, *et seq.*

22. The Board is the duly-authorized administrative agency of the State of Wyoming with statutory authority to regulate the practice of medicine and surgery in the State of Wyoming.

23. The Board has jurisdiction in this matter and over Dr. Welling pursuant to WYO. STAT. ANN. § 33-26-401(e).

24. Statutory enactments, such as the Act, are presumed to be constitutional. *Hoem v. State*, 756 P.2d 780, 782 (Wyo. 1988).

25. The Wyoming Administrative Procedure Act, Wyoming Statute § 16-3-

113(c), provides, in part:

> If the agency finds that public health, safety or welfare imperatively requires emergency action, and incorporates a finding to that effect in its order, summary suspension of a license may be ordered pending proceedings for revocation or other action.

26. The Act provides that "[t]he Board may temporarily suspend the license of any licensee without a hearing pursuant to W.S. 16-3-113(c)." WYO. STAT. ANN. § 33-26-404(c).

27. The Board concludes that, based on the aforementioned facts and information, the public health, safety, and welfare of the people of the State of Wyoming imperatively requires that Dr. Welling's Wyoming physician license No. 10015A be summarily suspended until the filing of a formal Petition setting forth in detail the alleged violations of the Act by Dr. Welling and the completion of a contested case hearing on, or other resolution of, said action.

28. Pursuant to WYO. STAT. ANN. § 33-26-408(c) and Chapter 7, § 17 of the Board's administrative rules, this order is a public document. Pursuant to WYO. STAT. ANN. § 33-26-408(d), this order shall, at a minimum, be reported to the chief of the medical staff and hospital administrator of each hospital in which Dr. Welling has medical staff privileges, a wire service, and to all appropriate agencies, including but not limited to, the Federation of State Medical Boards, the National Practitioner Data Bank, and other state medical boards.

29. This Order is not a final agency action, as WYO. STAT. ANN. § 16-3-113(c) contemplates that there be further proceedings for revocation or other Board action as the Board deems appropriate.

ORDER

IT IS HEREBY ORDERED, based upon the foregoing Findings of Fact and Conclusions of Law, that Eric C. Welling, M.D.'s Wyoming physician license No. 10015A and his authority and ability to practice medicine in the State of Wyoming shall be **SUMMARILY SUSPENDED** as of 5:00 p.m. M.D.T., November 4, 2022, and said suspension shall continue pending the filing of a formal Petition setting forth in detail the alleged violations of the Wyoming Medical Practice Act by Dr. Welling and the completion of a contested case hearing on, or other resolution of, said action.

DATED this 4th day of November, 2022.

FOR THE BOARD:

Mockensturm, PAC

Valerie Mockensturm, PA-C
Board President

APPROVED AS TO FORM:

Jessica Y. Frint
Senior Assistant Attorney General
Board Counsel

CERTIFICATE OF SERVICE

I, Connie J. Schepp, do hereby certify that on the 4th day of November, 2022, a true and correct copy of the foregoing *Order of Summary Suspension of Eric C. Welling, M.D., Wyoming Physician License No. 10015A, Pending a Contested Case Hearing* was served as indicated below and addressed to the following:

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